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Case Number: 19STCV17598 Hearing Date: August 18, 2026 Dept: 834

Superior Court of

California

County of Los Angeles

Department 78

SKILLED

FACILITY HEALTH CARE SOLUTIONS, INC., et al.

Plaintiff(s),

vs.

CALIFORNIA

WOUND HEALING MEDICAL GROUP, INC., et al.,

Defendant(s).

Case No.:

19STCV17598

Hearing

Date:

August 18,

2026

[TENTATIVE]

ORDER RE:

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MOTION FOR JUDGMENT

NOTWITHSTANDING THE VERDICT

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MOTION FOR NEW TRIAL

I. BACKGROUND

Plaintiff Skilled Facility Health Care Solutions, Inc. ("SFHC") provides wound care and gastric tube replacement in the nursing home environment. Plaintiff SFHC alleges Defendant Gabriel Halperin started a competitor organization, Defendant California Wound Healing Medical Group, Inc. ("Cal Wound"), by recruiting Plaintiff's employees and contractors and using the confidential, trade secret information those employees and contractors obtained during their employment with Plaintiff SFHC. Specifically, Plaintiff alleges Defendants' misappropriation of its gastric tube replacement procedure ("G-Tube procedure"), which Plaintiff alleges is a trade secret and confidential, proprietary information.

Plaintiff alleges Defendants Erika Lepe, John Sangmoah and Miriam Clark were health care professionals who purportedly performed services at nursing homes as Plaintiff's independent contractors, when in fact they performed services for Halperin and California. Plaintiff alleges Defendants Jeffrey Wood and Ivan Orozco were former employees in Plaintiff's sales department, who ultimately used their knowledge of Plaintiff's confidential business information to build Cal Wound's business. Plaintiff alleges each of these Defendants executed confidentiality agreements as part of their employment and independent contract with Plaintiff.

Plaintiffs filed this action on May 21, 2019. The operative complaint is the First Amended Complaint filed on September 19, 2019 alleging (1) intentional interference with contractual relations (against all Defendants); (2) intentional interference with prospective economic relations (against all Defendants); (3) intentional

misrepresentation (against Defendants Halperin, California, Lepe and Sangmoah); (4) negligent misrepresentation (against Halperin, California, Lepe and Sangmoah); (5) breach of written agreement (against Orozco, Lepe, Wood, Sangmoah, Clark); (6) misappropriation of trade secret (against all Defendants); (7) unfair competition (against all Defendants); (8) unjust enrichment (against all Defendants).

Demurrer was sustained with leave to amend to the third and fourth causes of action for intentional misrepresentation and negligent misrepresentation. No amendment was submitted.

On May 17, 2023, the Court ordered consolidation of the instant matter with 20STCV45093, Skilled Facilities Health Care Solutions, Inc. v. Melea Futrell. The instant case is the lead case.

On April 17, 2025, Plaintiffs' counsel asked the Court to dismiss Defendant Sangmoah from the FAC and confirmed that the only plaintiff proceeding to trial would be Plaintiff Skilled Facility Health Care Solutions, Inc. Plaintiff likewise asked the Court to dismiss all Doe defendants. Plaintiff likewise confirmed at that hearing that it was only pursuing the first and second causes of action as to all defendants; Plaintiff also specified that it was pursuing only some of the remaining causes of action, and only as to Orozco, Halperin, and/or Cal Wound. On July 23, 2025, Plaintiff dismissed the entire action against Melea Futrell.

Thereafter, at a March 4, 2026 Final Status Conference, counsel for both sides represented to the Court that Plaintiff had previously agreed to dismiss Defendants Lepe, Wood and Clark and prepared for/proceeded to trial on that basis, though Plaintiff to date has not filed dismissals of those defendants.

On March 16, 2026, jury trial commenced on Plaintiff Skilled Facility Health Care Solutions, Inc.'s remaining claims against Defendants Cal Wound, Gabriel Halperin, DPM ("Halperin") and Ivan Orozco ("Orozco") for intentional interference with contractual relations, intentional interference with prospective economic relations and misappropriation of trade secret as to Cal Wound, Halperin and Orozco and breach of contract as to Orozco only. On March 23, 2026, the

jury returned a special verdict finding (1) against Plaintiff and for Defendant Cal Wound on all causes of action; (2) against Plaintiff and for Defendant Halperin on all causes of action; (3) for Plaintiff and against Defendant Ivan Orozco on all causes of action. The jury awarded \$250,000 to Plaintiff on its claims against Orozco.

On June 10, 2026, the Court entered judgment on the special verdict.

On June 25, 2026, Defendant Orozco filed a Notice of Intent to Move for New Trial. On the same date, Orozco filed a Motion for Judgment Notwithstanding the Verdict (“JNOV”). On July 6, 2026, Orozco filed his memorandum of points and authorities in support of the Motion for New Trial (“MFNT”).

On July 14, 2026, Plaintiff filed its opposition to the Motion for JNOV. On July 16, Plaintiff filed its opposition to the MFNT.

On July 21, 2026, Orozco filed his reply brief in support of the JNOV. On July 23, 2026, Orozco filed his reply brief in support of the MFNT.

II. MOTION FOR JUDGMENT NOTWITHSTANDING THE VERDICT

A. Legal Standard

On a motion for judgment notwithstanding the verdict, a judge may render a judgment that is opposite or contrary to the verdict reached by the jury. (Code Civ. Proc., § 629.) “The purpose of a motion for judgment notwithstanding the verdict is not to afford a review of the jury’s deliberation but to prevent a miscarriage of justice in those cases where the verdict rendered is without foundation.” (Sukoff v. Lemkin (1988) 202 Cal.App.3d 740, 743, quotation marks omitted.)

“A JNOV acts as a demurrer to the evidence. A JNOV can be sustained only when it can be said as a matter of law that no other reasonable conclusion is legally deducible from the evidence, and that any other holding

would be so lacking in evidentiary support that the reviewing court would be compelled to reverse it, or the trial court would be compelled to set it aside as a matter of law. In considering a JNOV motion, the trial court must view the evidence in the light most favorable to the party securing the verdict. The JNOV motion may be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence in support.” (Suffolk Construction Co., Inc. v. Los Angeles Unified School Dist. (2023) 90 Cal.App.5th 849, 878.)

“The trial court’s discretion in granting a motion for judgment notwithstanding the verdict is severely limited. The trial judge cannot reweigh the evidence, or judge the credibility of witnesses.

If the evidence is conflicting or if several reasonable inferences may be drawn, the motion for judgment notwithstanding the verdict should be denied. A motion for judgment notwithstanding the verdict of a jury may properly be granted only if it appears from the evidence, viewed in the light most favorable to the party securing the verdict, that there is no substantial evidence to support the verdict. If there is any substantial evidence, or reasonable inferences to be drawn therefrom, in support of the verdict, the motion should be denied.” (Simmons v. Ware (2013) 213 Cal.App.4th 1035, 1047–1048, quotation marks omitted.)

“Substantial evidence” is “evidence of ponderable legal significance reasonable in nature, credible, and of solid value.” (Bowers v. Bernards (1984) 150 Cal.App.3d 870, 873.) “While substantial evidence may consist of inferences, such inferences must be a product of logic and reason and must rest on the evidence; inferences that are the result of mere speculation or conjecture cannot support a finding.” (Estate of Young (2008) 160 Cal.App.4th 62, 76.)

In evaluating whether a jury’s verdict is supported by substantial evidence, a court is required to consider the “whole record.” (Kuhn v. Department of General Services (1994) 22 Cal.App.4th 1627, 1633.) Considering evidence in isolation is insufficient. (See People v. Johnson (1980) 26 Cal.3d 557, 577.)

B. Orozco

Fails to Demonstrate “No Substantial Evidence”

To grant a motion for JNOV, the court must “no substantial evidence” to support the jury’s verdict. Orozco argues misappropriation of a trade secret was an “essential predicate” to find him liable on any of the four causes of action against him based on the court’s June 17, 2025 ruling (Opposition, 9:19-20), and argues Plaintiff presented no evidence of any identifiable trade secret. He asserts that Plaintiff’s two witnesses on this issue, Dr. Bardia Anvar, M.D. and Henry Okonkwo, admitted they could not identify a single trade secret misappropriated by Orozco. The record, viewed in the light most favorable to the verdict, does not support that characterization.

i. Testimony of Bardia Anvar, M.D.

Orozco claims Anvar “testified that he could not identify a single trade secret that Orozco misappropriated,” citing Anvar’s statements that the trade secret was “a series of things” rather than a single item. (Plaintiff’s Partial Transcript, Ex. A, 80:18-21.) But Orozco offers no analysis showing that Anvar’s description of a multi-component process cannot constitute a trade secret as a matter of law or that “no other reasonable conclusion [is] legally deducible from the evidence.” (Suffolk Construction Co., Inc., *supra*, 90 Cal.App.5th at 878.)

Anvar’s testimony, when read in full, supports the existence of protectable trade secret components. He testified that “[o]ne thing alone is not the secret,” and that the program consisted of multiple coordinated elements (Id. 80:1-3, 18-20). When pressed to identify particular components, Anvar identified the use of X-ray and gastrographing dye as “two of the main ones,” along with aspects of Plaintiff’s CRM system and tube-selection methodology (Id. 75:2-16; 80:24-81:4). He also testified that the G-tube change process and its refinements, including dye use, balloon inflation modifications, tube-choice criteria, and bedside methodology, were developed through experience, were unique, and were kept confidential (Id. 42:3-45:13; 49:18-28; 50:6-15; 55:1-3; 69:14-24; 76:22-28; 84:4-9).

Plaintiff also introduced its Onsite G-Tube Program Manual containing a “Proprietary Notice” restricting dissemination and mandating “strict confidentiality.” (Ex. 5.) Viewed collectively, this constitutes substantial evidence of trade secret existence.

Anvar further testified to facts supporting misappropriation, including Orozco's access to Plaintiff's password-protected CRM system and the timing of Longwood's contract termination following Orozco's departure (63:13-16; 64:5-27; 95:1-7).

ii. Testimony of Henry Okonkwo

Orozco argues Okonkwo "admitted he could not identify a specific trade secret," relying on his answer that he could not identify the specific confidential information Orozco used at Cal Wound ("The key word is 'specific,' and I would say no."). (March 17, 2026 Transcript, 160:25–161:2.) That excerpt was not provided to the Court, and even as quoted, it is not an admission that Plaintiff lacked trade secrets. Rather, Okonkwo testified only that he could not identify which specific trade secret Orozco used, which is distinct from whether Plaintiff possessed trade secrets.

Other portions of Okonkwo's testimony, submitted by Plaintiff, affirmatively support trade secret existence. He described developing the G-Tube program through extensive "trial and error," at a time when "no one was doing G-Tubes at the bedside from a wound care perspective" and "nobody was using dye contrast." (Ex. 2, 113:1-12; 148:1-4.) He testified that the G-Tube playbook was "secret," contained instructions for building the program "from scratch," and was accessible only to himself, Anvar, and Orozco (Ex. 2, 115:4-28; 118:11-26; 143:9-15). He also described Plaintiff's confidentiality measures (Ex. 2, 116:1-5; Ex. 4).

This testimony, viewed in the light most favorable to the verdict, constitutes substantial evidence of protectable trade secrets and of Orozco's knowledge of them.

iii. Testimony of Orozco and Defense Expert Alvin May, M.D.

Orozco testified that he knew the G-Tube program he was developing with Okonkwo was confidential and that it fell within the scope of his confidentiality agreement with Plaintiff. (Plaintiff's Partial Trial Transcript, Ex. 3, Orozco Testimony, 48:12-25.) Orozco also testified that he knew this confidential information included operations and business strategies of the G-Tube program. (Id. 48:20-25.)

Defense expert Alvin May testified that he considers his own workflow protocol for his G-tube business a trade secret. (29:6-11, 27-28; 30:1-5.) This supports the characterization of such clinical operational systems as protectable trade secrets.

iv.

Defendant Fails to Establish That There was No Substantial Evidence to Support a Finding of Misappropriation of Trade Secret

The jury received CACI 4400-4402, each identifying and/or defining “trade secret.” CACI 4402 required Plaintiff to prove secrecy, economic value derived from secrecy, and reasonable efforts to maintain it. The parties offered and agreed to these jury instructions and themselves populated their contents. At no time did Orozco object or request alternative instructions or definitions of “trade secret.”

Further, Civil Code section 3426.1 permits trade secrets consisting of formulas, patterns, compilations, methods, techniques, or processes. Trade secrets may be combinations of elements. (*Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 54.)

Here, the evidence showed Plaintiff’s G-Tube program consisted of multiple coordinated elements including dye-contrast methodology, bedside use of radiology, tube-selection techniques, workflow processes, and CRM-based operational systems developed over time, refined through proprietary experience, and maintained through confidentiality measures. Plaintiff presented no admission that it possessed no identifiable trade secret. Instead, both Anvar and Okonkwo provided detailed testimony supporting secrecy, novelty, economic value, and reasonable efforts to preserve confidentiality. Orozco testified that the process he developed with Okonkwo was confidential and subject to the confidentiality agreement.

Given this record, Orozco fails to satisfy the demanding JNOV standard. He does not demonstrate that the evidence permitted only one reasonable conclusion (*Suffolk Construction, supra*, 90 Cal.App.5th at 878), or that “no substantial evidence” supported the jury’s finding of trade secret misappropriation.

C. The Verdict

on Intentional Interference Causes of Action

Orozco argues the intentional interference verdicts were unsupported because Plaintiff presented no substantial evidence of an independently wrongful act (i.e., trade secret misappropriation) and asserts again that Plaintiff's "witnesses could not identify a single trade secret Orozco misappropriated." (Opposition, 11:3-4.) As discussed above, the testimony of Anvar and Okonkwo did not constitute such an admission. Rather, viewed in the light most favorable to Plaintiff, both witnesses identified Plaintiff's trade secret as the multi-component G-tube bedside replacement process Plaintiff developed over time, including dye-contrast techniques, radiology use, tube-selection methodology, workflow processes, and the client-relationship management software. Their testimony provided substantial evidence from which the jury could conclude that Plaintiff possessed a protectible trade secret per the uncontested jury instructions and Civil Code section 3426.1, and that Orozco misappropriated it. Accordingly, Defendant fails to show that "no substantial evidence" supported the jury's finding of an independently wrongful act.

D. The Verdict on Breach of Contract Claim

Orozco contends that Business and Professions Code section 16600 bars any contractual liability based on Orozco's competition, joining a competitor, contacting customers, or using general knowledge. (Opposition, 11:15-19.) Orozco argues that the only lawful theory on which Plaintiff could prevail was a breach based on Orozco's unlawful use or disclosure of trade secret information, and asserts once more that the verdict is unsupported because Plaintiff's witnesses "admitted" they could not identify any protectible trade secret. (Opposition, 11:23-25.)

As discussed above, no such admission was made. Anvar and Okonkwo provided substantial evidence of Plaintiff's confidential G-tube program and the measures taken to maintain its secrecy. Orozco himself acknowledged the information he developed with Plaintiff was confidential and subject to the confidentiality agreement. Viewing the record in the light most favorable to Plaintiff, substantial evidence supports the jury's finding that Orozco breached the confidentiality agreement by using or disclosing Plaintiff's trade secret information. Orozco therefore does not establish that "no substantial evidence" supported the verdict on breach of contract.

D. Inconsistent Verdict
is Not Grounds for JNOV

Orozco argues the special verdict is internally inconsistent because the jury found Orozco liable on all four causes of action (misappropriation of trade secrets, intentional interference with contractual relations, intentional interference with prospective economic advantage, and breach of contract) while finding Cal Wound and Halperin not liable on the three claims asserted against them. Orozco contends this inconsistency is fatal because, under Plaintiff's theory, Orozco could only have misappropriated Plaintiff's trade secrets to benefit Cal Wound and Halperin in obtaining the Longwood G-tube contract. Defendant maintains that if Orozco misappropriated Plaintiff's trade secrets, "they would have had to find as to Cal Wound and Halperin" as well.

Orozco also argues the verdict necessarily defeats causation for the \$250,000 award, asserting Plaintiff's only theory of damages was that Cal Wound used misappropriated trade secrets to "steal" Longwood. Orozco contends that, because the jury found Cal Wound not liable, the damages award cannot be reconciled with any use of trade secrets by Orozco.

These arguments do not provide a basis for JNOV. Under California law, an inconsistent special verdict, if truly inconsistent, may warrant a new trial, but it does not permit entry of judgment notwithstanding the verdict. "[T]he proper remedy for an inconsistent verdict is a new trial." (Stillwell v. The Salvation Army (2008) 167 Cal.App.4th 360, 374-375.) "If the special verdict is inconsistent, the proper remedy is to order a new trial." (Missakian v. Amusement Industry, Inc. (2021) 69 Cal.App.5th 630, 655.)

Defendant's authorities do not support the proposition that JNOV is available to cure an inconsistent special verdict. Code of Civil Procedure section 624 merely defines general and special verdicts and does not establish JNOV as a remedy for inconsistency. In Mendoza v. Club Car, Inc. (2000) 81 Cal.App.4th 287, the verdict ultimately entered was not inconsistent because the trial court required the jury to deliberate further under Code of Civil Procedure section 619. (Mendoza, supra, 81 Cal.App.4th at 301-302.) In Singh v. Southland Stone, U.S.A., Inc. (2010) 186 Cal.App.4th 338, the Court found an inconsistent verdict and ordered a new trial, explicitly reaffirming that "the proper remedy for an inconsistent

special verdict is a new trial.” (Singh, supra, 186 Cal.App.4th at 358.) Likewise, in Zagami, Inc. v. James A. Crone, Inc. (2008) 160 Cal.App.4th 1083, the Court reversed the judgment on an inconsistent verdict and remanded for new trial, not judgment for the defendant. (Zagami, Inc., supra, 160 Cal.App.4th at 1086-1087.)

Because California law does not authorize JNOV to remedy an alleged inconsistency in a special verdict, Defendant’s Motion for Judgment Notwithstanding the Verdict on this ground is denied.

E. Substantial Evidence Supports the Award

Orozco argues Plaintiff failed to prove causation and damages, asserting there was no evidence of a trade secret, no evidence misappropriation caused harm, and that any “lack of causation” is shown by the purportedly inconsistent verdict. These arguments do not satisfy the demanding JNOV standard.

As discussed above, substantial evidence was presented that Plaintiff possessed a protectible trade secret, and circumstantial evidence supported the jury’s finding that Orozco used that information to benefit Cal Wound. Circumstantial evidence of misappropriation is legally sufficient. “Circumstantial evidence, when relevant, is as admissible as direct evidence.” (Ajaxo Inc. v. E*Trade Group Inc. (2005) 135 Cal.App.4th 21, 50.) In Ajaxo, the Court upheld a misappropriation finding based entirely on circumstantial indicators of use and timing. (Ajaxo, supra, 135 Cal.App.4th at 53-54.)

Here, Plaintiff presented comparable circumstantial evidence: Longwood terminated Plaintiff and hired Cal Wound immediately after Orozco joined Cal Wound (Plaintiff’s Partial Transcript, Ex. 2, 143:9-15); Orozco had applied and refined the G-Tube program at Longwood using Plaintiff’s location-specific information (Ex. 1, 94:19-20; 106:11-13; Ex. 2, 113:20-28, 114:1-25); and Anvar testified that Orozco represented to Longwood that Cal Wound could provide “the same program” and used Plaintiff’s proprietary dye and radiology methods once Cal Wound took over (Ex. 1, 95:10-23; 96:8-12; 80:24). Plaintiff also submitted evidence that Cal Wound had provided no G-tube services to Longwood prior to Orozco’s arrival. (Plaintiff’s Trial Brief, 3:3-5; Ex. 1, 84:21-28, 85:1-7.)

Under *Simmons v. Ware*, if the evidence supports multiple reasonable inferences, JNOV must be denied. (*Simmons*, supra, 213 Cal.App.4th at 1047-1048.) The circumstantial evidence permitted the jury to reasonably infer that Orozco used Plaintiff's trade secrets to obtain Longwood's business. Because the evidence was susceptible to competing reasonable inferences, Defendant cannot demonstrate an absence of substantial evidence of causation.

Orozco's reliance on the asserted "inconsistency" of the verdict does not establish a failure of proof. A special verdict does not reveal what evidence the jury relied on, and Code of Civil Procedure section 624 expressly prohibits inclusion of evidentiary detail ("The special verdict must present the conclusions of fact... and not the evidence to prove them."). Thus, the verdict form itself cannot demonstrate a lack of causation evidence.

Orozco also argues there was no "direct" evidence, such as testimony from a Longwood decisionmaker or a specific marketing proposal, connecting the trade secret to the loss of the contract. Direct evidence was not required. The jury was permitted to rely on circumstantial evidence and reasonable inferences. Moreover, Anvar testified that Orozco told Longwood Cal Wound could provide "the same program" as Plaintiff. (Ex. 1, 95:10-23.)

Finally, Orozco contends the damages award must be unsupported because the \$250,000 figure does not "correlate" to any single number in the economic evidence. This argument does not establish a complete failure of proof. It challenges how the jury calculated its award, not whether evidence of damages existed. Such an argument implicates the adequacy or excessiveness of the damages award, which is an issue addressed through a motion for new trial, not JNOV. (See *Grail Semiconductor, Inc. v. Mitsubishi Electric & Electronics USA, Inc.* (2014) 225 Cal.App.4th 786, 794 [excessive damages resulting from an incorrect measure require new trial, not JNOV].)

Because Plaintiff presented substantial evidence of causation and damages, and Orozco has not demonstrated that "no substantial evidence" supported the \$250,000 award, Defendant's Motion for Judgment Notwithstanding the Verdict on damages is denied.

F. Conclusion

Based on the foregoing, Defendant Orozco's Motion for JNOV is DENIED.

III. motion
for new trial

A. Legal Standard

A new trial may be granted only on statutory grounds. (Ajaxo, Inc. v. E*Trade Fin. Corp. (2020) 48 Cal.App.5th 129, 187.) The principal grounds for a motion for new trial are set forth in Code of Civil Procedure section 657, which permits vacatur of a verdict following trial, in whole or in part, and a new trial ordered on all or some of the issues, for specific reasons that "materially affected the substantial rights of a party." (Code Civ. Proc. §657). The statutory bases include, among others, "insufficiency of the evidence to justify the verdict or another decision or the verdict or another decision is against law." (Id. at subdivisions (1) – (7).)

If a new trial is sought on the grounds of insufficiency of the evidence to justify the verdict or another decision, or on the grounds of excessive or inadequate damages, it cannot be granted unless after weighing the evidence the court "is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Code of Civ. Proc., § 657.)

The determination of a motion for new trial rests so completely within the trial judge's discretion that it will not be disturbed on appeal unless a manifest and unmistakable abuse of discretion clearly appears. (Schelbauer v Butler Mfg. Co. (1984) 35 Cal.3d 442, 452.)

The rationale is that the trial judge is familiar with the evidence, witnesses and proceedings of the case and is in the best position to determine whether a new trial should be granted. (Jacoby v. Feldman (1978) 81 Cal.App.3d 432, 446.)

B. Orozco's Motion for New Trial

Orozco moves for new trial under Code of Civil

Procedure section 657, subdivision (6), arguing that the evidence was insufficient to justify the verdict and that the verdict is against the law.

The majority of Orozco's MFNT arguments mirror those raised in support of his JNOV, including his contentions that Plaintiff failed to identify any protectible trade secret, failed to establish misappropriation, failed to show an independently wrongful act, and failed to prove causation or damages. For the reasons already set forth in the Court's JNOV analysis above, the Court rejects those arguments. The evidence described in the JNOV section (regarding the existence of Plaintiff's trade secrets, Orozco's access and use, circumstantial proof of misappropriation, and the evidentiary basis for the damages award) fully supports the jury's verdict and demonstrates that the jury was not required to reach a different result.

The Court therefore incorporates its preceding JNOV analysis by reference and does not repeat that discussion here. To the extent Orozco's MFNT relies on the same evidentiary challenges, those arguments fail for the same reasons and do not persuade the Court, after independently weighing the evidence, that the jury clearly should have reached a different verdict.

The Court now turns to the additional issues raised only in the MFNT that require separate analysis.

i. Orozco Did Not Waive Right to Seek New Trial

Plaintiff argues Orozco waived any challenge to a purportedly inconsistent verdict because he did not ask the Court to send the jury back for further deliberation under Code of Civil Procedure section 619. (Opposition, p. 10.) Plaintiff cites no authority establishing that a party forfeits the right to seek a new trial under section 657 by failing to request clarification under section 619 before the jury is discharged.

Section 619 is permissive, not mandatory. It authorizes the court to return the jury for further deliberation when a verdict is "informal or insufficient," but it contains no language indicating that failure to do so constitutes a waiver of later challenges to the verdict. (Code Civ. Proc. §619.) The statute does not address inconsistent verdicts, nor does it require a party to object at the time of the verdict to preserve the right to seek a new trial.

California authority confirms this. In *Campbell v. Zokelt* (1969) 272 Cal.App.2d 315, the Court of Appeal rejected the identical waiver argument. The Court held that an inconsistent verdict is not an “informal or insufficient” verdict within the meaning of section 619, and therefore “such inconsistency need not be called to the attention of the trial court, pursuant to Code of Civil Procedure section 619.” (Id. at p. 320.) Under *Campbell*, a party’s failure to request clarification under section 619 does not bar a later motion for new trial based on inconsistency.

Accordingly, Orozco did not waive his right to seek a new trial by not invoking section 619, and Plaintiff’s waiver argument provides no basis to deny the motion.

ii. The Verdict is Reconcilable

Both parties’ briefing on the alleged inconsistency in the special verdict is limited. Orozco cites *Singh*, supra, 186 Cal.App.4th 338; *Zagami*, supra, 160 Cal.App.4th 1083; and *Missakian*, supra, 69 Cal.App.5th at 654, but none of these cases compel a finding that the verdict here is irreconcilable. Plaintiff, in turn, asserts that the verdict can be harmonized but provides little authority beyond the general rule that a verdict must be reconciled if reasonably possible. Ultimately, the burden rests with Orozco, and he has not met it.

A special verdict’s findings are inconsistent only where the answers are “contradictory on a material issue necessary to sustain the judgment” and where “there is no possibility of reconciling its findings with each other.” (*Missakian*, supra, 69 Cal.App.5th at 654; *Singh*, supra, 186 Cal.App.4th at 357-358.) When confronted with a claimed inconsistency, the court must interpret the verdict “in light of the jury instructions and the evidence and attempt to resolve any inconsistency.” (*Singh*, supra, at 358.) At the same time, unlike a general verdict, a court interpreting a special verdict will not infer missing findings. (*Missakian*, supra, at 660.)

The cases Defendant relies on do not establish that the verdict here cannot be reconciled. Each involved circumstances in

which the jury was asked to decide the same factual predicate against multiple defendants under a unitary theory, such that different findings across defendants necessarily contradicted each other. In *Missakian*, the plaintiff advanced a single promissory-fraud theory (a promise made only by one individual who was also the principal of the corporate defendant) and the verdict found the corporation liable for making a false promise but the individual not liable for making that same promise. Because the plaintiff's sole theory required identical findings as to both defendants, the verdict was truly irreconcilable. (*Missakian*, *supra*, 69 Cal.App.5th at 659-661.)

That is not the situation here. Plaintiff did not proceed on a derivative liability or respondeat superior theory against Cal Wound. No such instructions were requested or given by either party. Instead, Plaintiff's theory, as tried and instructed, required the jury to make findings of direct liability for each defendant based on each defendant's own conduct, knowledge, and state of mind. Under the Uniform Trade Secrets Act, misappropriation liability is personal and independent; each defendant may be held liable only if that defendant used the trade secret, knew or had reason to know it was acquired by improper means, and acted with the requisite knowledge. (*PMC, Inc. v. Kadisha* (2000) 78 Cal.App.4th 1368, 1383.) Conversely, one defendant's misappropriation does not automatically impose liability on another absent proof of the statutory elements as to that defendant.

Given that framework, which neither party cited, the verdict is reconcilable. The jury could reasonably find that Orozco knowingly used Plaintiff's trade secrets in soliciting Longwood, while also finding that Cal Wound and Halperin did not personally misappropriate the trade secret and did not themselves act with the requisite knowledge or state of mind. The UTSA expressly permits such individualized findings, and they do not contradict one another.

Defendant further argues the verdicts are inconsistent on causation and damages because Cal Wound benefitted from the misappropriation but was not found liable. But causation and damages are remedial components, not elements of the misappropriation tort. (*Applied Medical Distribution Corp. v. A.R.M.* (2024) 100 Cal.App.5th 562, 570-571.) Civil Code section 3426.3, subdivision (a) permits recovery for "actual loss caused by misappropriation," regardless of whether the misappropriating defendant personally profited. The jury was instructed only on damages arising from Orozco's misappropriation, and the verdict finding Orozco liable for damages, but

not Cal Wound or Halperin, is consistent with the statutory scheme and with the jury's liability findings.

After reviewing the pleadings, evidence, arguments, and jury instructions, the Court concludes that the special verdict can be reconciled. Defendant has not shown that the verdict was "against law" under Code of Civil Procedure section 657. Accordingly, the motion for new trial is denied on this ground.

iii. The Damages Award

Was Supported by the Weight of the Evidence

A new trial on the ground of insufficient evidence may not be granted "unless after weighing the evidence the court is convinced from the entire record, including reasonable inferences therefrom, that the court or jury clearly should have reached a different verdict or decision." (Code Civ. Proc., § 657.) In conducting that review, the trial court "is vested with the authority to disbelieve witnesses, reweigh the evidence, and draw reasonable inferences therefrom contrary to those of the trier of fact," but only where the court concludes that the jury's determination is manifestly against the weight of the evidence. (*Casella v. SouthWest Dealer Services, Inc.* (2007) 157 Cal.App.4th 1127, 1159-1160; *Lane v. Hughes Aircraft Co.* (2000) 22 Cal.4th 405, 412; *Licudine v. Cedars-Sinai Medical Center* (2016) 3 Cal.App.5th 881, 900.)

As discussed in the Court's JNOV analysis, substantial evidence supported the jury's findings on trade secret existence, misappropriation, intentional interference, breach of contract, and causation. The evidence included testimony by Anvar and Okonkwo regarding the development, novelty, and confidential components of Plaintiff's G-Tube program; the steps taken to preserve secrecy; Orozco's access to and use of Plaintiff's program; Longwood's termination immediately after Orozco joined Cal Wound; and Cal Wound's rapid ability to provide G-Tube services once Orozco arrived. Reweighing that evidence does not lead the Court to conclude the jury "clearly should have" found no causation.

As to damages, Defendant argues the \$250,000 award is speculative because Exhibit 44 does not contain a number that mathematically corresponds to the award. Defendant cites no authority holding that a damages award is invalid under section 657 merely because the figure

does not map precisely onto a single line item in the evidence, nor does Defendant identify any case requiring a jury to match its damages award to a specific historical revenue or profit figure. Defendant's briefing contains no legal support for his argument that, under these circumstances, section 657 authorizes the Court to deem the award "speculative" and order a new trial.

Plaintiff's briefing on damages is also limited.

Plaintiff argues principally that the jury reasonably awarded less than Plaintiff sought and that circumstantial evidence permitted a damages inference. Although Plaintiff does not provide a detailed damages analysis or authority closely aligned with the facts here, the burden remains on Defendant under section 657 to show the jury "clearly should have reached a different verdict."

The record contains sufficient evidence from which the jury could reasonably award \$250,000. Plaintiff offered evidence of historical profits from servicing Longwood, testimony from Ikemoto regarding revenues, and documentary evidence from which the jury could infer the financial impact of losing Longwood. The jury was entitled to draw reasonable inferences from that evidence, including reducing the damages figure in light of its finding of liability against Orozco alone rather than all defendants. The jury was not required to adopt Plaintiff's full damages request or to tie its verdict to a single numerical figure in Exhibit 44, and Defendant cites no authority to the contrary.

California law distinguishes between (1) a failure of proof requiring JNOV and (2) a potentially excessive or imperfectly measured damages award that may justify a new trial. (*Grail Semiconductor, Inc. v. Mitsubishi Electric & Electronics USA, Inc.* (2014) 225 Cal.App.4th 786, 793-795; *Dell'Oca v. Bank of New York Trust Co., N.A.* (2008) 159 Cal.App.4th 531, 552, 558.) Defendant has not shown either, and he has not shown that the damages award here is against the weight of the evidence.

After weighing the entire record, the Court is not persuaded that the jury clearly should have reached a different damages verdict. Defendant's motion for new trial on the issue of damages is therefore denied.

V. CONCLUSION

Defendant Orozco's Motion for
Judgment Notwithstanding the Verdict is DENIED.

Defendant Orozco's Motion for New
Trial is DENIED.

Moving Party is ordered to give notice.

DATED:
August 18, 2026

Hon. Tiana J. Murillo

Judge of the Superior Court

PLEASE
TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If

a party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the

Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.